2. If there is a single party having an absolute majority in the Legislative Assembly, the leader of that party should automatically be asked to become the chief minister. However, if there is no such party, the Governor should select a chief minister from among the following parties or groups of parties by sounding them, in turn, in the order of preference indicated below:

    1. An alliance of parties that was formed prior to the elections.

    2. The largest single party staking a claim to form the government with the support of others, including independents.

    3. A post-electoral coalition of parties, with all the partners in the coalition joining the government.

    4. A post-electoral alliance of parties, with some of the parties in the alliance forming a government and the remaining parties, including independents, supporting the government from outside.

3. The Governor while going through the process described above should select a leader who in his/her (Governor's) judgement is most likely to command a majority in the Legislative Assembly.

4. A chief minister, unless he/she is the leader of a party, which has absolute majority in the Legislative Assembly, should seek a vote of confidence in the Legislative Assembly within 30 days of taking over.

5. When a number of members of the Legislative Assembly approach the Governor and contest the claim of the incumbent chief minister to continued majority support in the Legislative Assembly, the Governor should not risk a determination of this issue of majority support, on his/her own, outside the Legislative Assembly. The prudent course for him/her would be to cause the rival claims to be tested on the floor of the House.

**OATH, TERM AND SALARY**

Before the Chief Minister enters his/her office, the governor administers to him/her the oaths of office and secrecy.[1] In his/her oath of office, the Chief Minister swears:

1. to bear true faith and allegiance to the Constitution of India,

2. to uphold the sovereignty and integrity of India,

3. to faithfully and conscientiously discharge the duties of his/her office, and

4. to do right to all manner of people in accordance with the Constitution and the law, without fear or favour, affection or ill-will.

In his/her oath of secrecy, the Chief Minister swears that he/she will not directly or indirectly communicate or reveal to any person(s) any matter that is brought under his/her consideration or becomes known to him/her as a state minister except as may be required for the due discharge of his/her duties as such minister.

The term of the Chief Minister is not fixed and he/she holds office during the pleasure of the governor. However, this does not mean that the governor can dismiss him/her at any time. He/she cannot be